

ence to very particular circumstances; the ordinary husbandry lease is for twenty-one years (*c*).

56. **Leases determinable on lives.** — In *Attorney-General v. Cross* (*d*), the trustees had been in the habit of granting leases for ninety-nine years, *determinable on lives*, in consideration of fines and the reservation of a small rent, a mode of letting very general in the county where the lands were situate, and which was proved to have been adopted by the founder himself. A bill was filed to set aside such a lease, but Sir W. Grant said, “I am not aware of any principle or authority on which it can be held that such a lease is on the very face of it a breach of trust. The legislature has, both in enabling and disabling statutes, * considered [*546] *leases for three lives as on a footing with leases for twenty-one years absolute*. So have the founders of charities, who prohibited the letting on lease for more than three lives, or twenty-one years.” And his Honour dismissed the bill, and allowed the trustees their costs out of the charity estate.

57. **Leases for lives.** — In a later case, where charity lands had for two hundred years been let for lives upon a fine or foregift at a small reserved rent, Lord Langdale said there was no principle that a lease of a charitable estate for lives was, on the face of it, a breach of trust; and as there appeared no other ground of invalidating the leases, he refused to set them aside (*a*).

58. **Building leases.** — *Building* leases should be for a term not exceeding sixty, or ninety, or ninety-nine years (*b*). If granted for a longer period, it would be thrown upon the parties to show the reasonableness of the prolonged term from the particular circumstances of the case.

59. **Founder's intention.** — What has been said as to the proper duration of leases is of course only applicable where

(*c*) *Attorney-General v. Owen*, 10 Ves. 560, *per* Lord Eldon; and see *Attorney-General v. Griffith*, 13 Ves. 575; *Attorney-General v. Backhouse*, 17 Ves. 291; *Attorney-General v. Brooke*, 18 Ves. 326; *Attorney-General v. Lord Hotham, T. & R.* 216; *Attorney-General v. Kerr*, 2 Beav.

421; *Attorney-General v. Hall*, 18 Beav. 388.

(*d*) 3 Mer. 524; see pp. 530, 539.

(*a*) *Attorney-General v. Crook*, 1 Keen, 121, see 126.

(*b*) See *Attorney-General v. Owen*, 10 Ves. 560; *Attorney-General v. Backhouse*, 17 Ves. 291; *Attorney-General v. Foord*, 6 Beav. 290.